

Cap. 6. For Redresse of Delays of Judgements.

67

parliament, and there shall be a final accord taken what judgement ought to be given in this case, and according to this accord it shall be commanded to the judges before whom the plea did depend; that they shall proceed to give judgement without delay.

Before the making of this statute delay of judgements was forbidden both by the common law, and by acts of parliament. By the common law. 1. It is required, that *plena et celeris justitia fiat partibus*, &c. not *plena* alone, nor *celeris* alone, but both *plena et celeris*. All writs of *præcipe quod reddat*, are, *Quod juste et sine dilatione reddat*, &c. All judicial writs are *sine dilatione*, &c. 2. There did and yet doth lye a writ *de procedendo ad judicium*, when the justices or judges of any court of record, or not of record, delayed the party plaintiff or defendant, demandant or tenant, and would not give judgement: and thereupon an *alias plur'*, and an attachment, &c. doth lye. And the words of the writ be, *Quia redditio judicii loquelæ quæ est coram vobis*, &c. *de quadam transgressione eidem A. per præfat' B. illata, ut dicitur, diuturnam cepit dilationem ad grave damnum ipsius A. sicut ex querela sua accepimus, vobis præcipimus quod ad judicium inde reddendum cum ea celeritate quæ secundum legem et consuetudinem regni nostri procedas*, &c.

3. Likewise when justices or judges of any court of record, or not of record gave judgement, and delayed the party of his execution, the party grieved may have a writ *de executione judicii*; by which writ the justices or judges are commanded, *Quod executionem judicii nuper redditit*, &c. *de loquela quæ fuit*, &c. *per breve nostrum*, &c. *sine dilatione fieri fac'*. And thereupon an *alias, plur'* and attachment, &c. do lye.

4. By the meeting together upon adjournment of the cause out of the court, where the cause dependeth, &c. All the judges, &c. which now we call an exchequer chamber cause, warranted by the common law and ancient presidents before this statute: and the frequent use of this court of exchequer chamber hath been the cause that this court upon the act of 14 E. 3. hath been rarely put in ure.

5. By the kings writ comprehending *quod si difficultas aliqua interfit*, that the record should be certified into the parliament, and to adjourne the parties to be there at a certain day. *Si obscurum et difficile sit judicium, ponantur judicia in respect' usque magnam curiam*. An excellent record, whereof you may read in the parliament holden at Westminster the Tuesday after the translation of Becket, anno 14 E. 3.

Secondly, by acts of parliament. *Nulli vendemus, nulli negabimus, nec differemus justitiam vel rectum*.

That it shall not be commanded neither by the great-seale, nor by the little-seale, nor by letters, nor any other cause to delay right: and albeit such commandement come, &c. that by them the justices surcease not to do right in no manner. *Vide* 2 E. 3. cap. 8. 14 E. 3. cap. 14. 18 E. 3. stat. 3. 2 R. 2. a statute not in print, Rot. parl. nu. 51. whereby it is enacted, that no justice shall stay justice for any writ, letter of the great-seal or privy-seal, or other commandement whatsoever against the laws and statutes before

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that

Regist. 137. a.
F. N. B. 23. c.
And so upon counsels granted.

Regist. fo. 22.
F. N. B. 153. b.
&c. Cust. de
Norm. cap. 27.

[68]

Diuturna dilatio.

Regist. fo. 18.
F. N. B. fo. 20. a.
&c.

See hereafter, ca. Exchequer and Exchequer Chamber.

2 E. 3. fo. 7.
Ellys Callers
case. Braet. lib. r.
ca. 2. rot. parl.
14 E. 3. nu. ult.
Sir Geoff. Stan-
tons case.

Mag. Cart.
ca. 29.

2 E. 3. fo. 3.
per Aldham.
14 E. 3. jour. 24.
18 E. 3. 47. 57.
31 E. 3. an. 161.
39 E. 3. 37.
11 H. 4. 5. 76.
9 H. 6. 58. b.
5 E. 4. 132.
Fortesc. cap. 6.
F. N. B. 240. d.